

Neutral Citations

2024 MPHC-IND 28080

Equivalent Citations

citation codes .

Malcolm Murayis Through Poa Holder Mr. Adarsh Thakur v. Avantika

Madhya Pradesh High Court (Sep 24, 2024)

CASE NO.

CONC 3642/2024

JUDGES

- HON'BLE SHRI JUSTICE PRANAY VERMA

ATTORNEY

- Savya Sachi Saxena

IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE

BEFORE

HON'BLE SHRI JUSTICE PRANAY VERMA ON THE 24th OF SEPTEMBER,
2024 CONTEMPT PETITION CIVIL No. 3642 of 2024

MALCOLM MURAYIS THROUGH POA HOLDER MR. ADARSH THAKUR
AND OTHERS

Versus

AVANTIKA AND OTHERS

Appearance:

Shri Arihant Nahar, learned counsel for petitioners. Shri Arpit Guru, learned counsel
for respondents No.1 and 2.

ORDER

1. By this petition the petitioner has alleged non-compliance of order dated
26.04.2024 passed in W.P. No.1100/2024. In the said order it was directed as
under :-

"[9] In such circumstances, this Court is inclined to dispose of this petition with a
direction to the respondents/Bank to keep the disputed amount as informed to them
by various *cybercrime* agencies, in fixed deposits, which shall be allowed to be
liquidated only after the orders are passed by the competent Judicial Magistrate
within three months' time as it is expected from the *cybercrime* police to proceed in
accordance with law under Section 102 of Cr.P.C., or any other law on which they
are relying upon, failing which the amount so kept in FDs may also be allowed to be
withdrawn by the petitioners under intimation to the *cybercrime* agencies."

2. Learned counsel for the respondents has submitted that in compliance of the order
of this Court, the respondents have kept the disputed amount as informed to them by
various *cybercrime* agencies in Fixed Deposit. However, no order from any
competent Judicial Magistrate has been received as yet. The

(PRANAY VERMA)

JUDGE

cybercrime agencies are insisting to keep the amount in the Fixed Deposits. There are certain regulations of the respondents also which are an impediment for allowing the petitioners to withdraw the amount as kept in the Fixed Deposits. However, it is submitted that if order is passed by this Court, the amount kept in the Fixed Deposits would be liquidated and released in favour of the petitioners.

3. The fact that the *cybercrime* agencies are insisting upon the respondents not to release the amount in favour of the petitioners cannot in any manner be a reason for the respondents not to do so in view of specific order passed by this Court. The said order would also supersede any other instructions/regulations of the respondents in that regard. It may be noted that if in compliance of the order of this Court the respondents liquidate the amount kept by them in the Fixed Deposit and release the same in favour of the petitioners, in future, only for the reason in them doing so, they cannot be held guilty of having violated any rules and regulations in that regard and no third person can make any allegation against them.

4. Learned counsel for the respondents has submitted that the amount kept in the Fixed Deposits shall be liquidated and released in favour of petitioners within a period of two weeks from today. The said undertaking is taken on record in view of which the petition stands disposed off.

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